

I. PERSONAL INFORMATION

FAMILY NAME:

GIVEN NAME:

MIDDLE NAME:

NICKNAME:

GENDER:

CIVIL STATUS:

BLOOD TYPE:

BIRTH ORDER:

NO. OF SIBLING/S:

DATE OF MARRIAGE:

NO. OF CHILDREN:

HOME ADDRESS:

POSTAL CODE:

TEL. NO.:

MOBILE NO.:

OFFICE NO./LOCAL:

NATIONALITY:

DATE OF BIRTH:

PLACE OF BIRTH:

RELIGION:

E-MAIL ADDRESS:

TAX STATUS:

SSS NO.:

TIN:

PHILHEALTH NO.:

PAG-IBIG NO.:

PRC LICENSE NO.:

II. PARENTS INFORMATION

FATHER'S NAME:

HOME ADDRESS:

DATE OF BIRTH:

MOBILE NO.:

NATIONALITY:

MOTHER'S NAME:

HOME ADDRESS:

DATE OF BIRTH:

MOBILE NO.:

NATIONALITY:

III. SPOUSE'S INFORMATION

FAMILY NAME:

GIVEN NAME:

MIDDLE NAME:

GENDER:

DATE OF BIRTH:

PLACE OF BIRTH:

HOME ADDRESS:

TEL. NO.:

OFFICE NO.:

MOBILE NO.:

E-MAIL ADDRESS:

EMPLOYER:

OCCUPATION:

IV. SIBLINGS OR CHILD/ CHILDREN INFORMATION

FAMILY NAME:

GIVEN NAME:

MIDDLE NAME:

GENDER:

DATE OF BIRTH:

AGE:

CIVIL STATUS:

RELATION:

FAMILY NAME:

GIVEN NAME:

MIDDLE NAME:

GENDER:

DATE OF BIRTH:

AGE:

CIVIL STATUS:

RELATION:

FAMILY NAME:

GIVEN NAME:

MIDDLE NAME:

GENDER:

DATE OF BIRTH:

AGE:

CIVIL STATUS:

RELATION:

FAMILY NAME:

GIVEN NAME:

MIDDLE NAME:

GENDER:

DATE OF BIRTH:

AGE:

CIVIL STATUS:

RELATION:

V. EDUCATIONAL BACKGROUND

| GRADUATE ( )                           |  | UNDERGRADUATE ( )                            |                                                               |
|----------------------------------------|--|----------------------------------------------|---------------------------------------------------------------|
|                                        |  | IF UNDERGRADUATE, REASON FOR NOT GRADUATING: | FOR UNDERGRAD, SEMESTERS/ YEARS FINISHED (I.E. 3 YRS & 1 SEM) |
| LICENSES HELD: (I.e. REGISTERED NURSE) |  |                                              |                                                               |
| IF REGISTERED NURSE: FOREIGN or LOCAL  |  |                                              |                                                               |
| LICENSE NUMBER:                        |  |                                              |                                                               |

|                                              | NAME OF SCHOOL / INSTITUTION | ADDRESS / INCLUSIVE YEARS | AWARDS CERTIFICATIONS / ACCREDITATIONS |
|----------------------------------------------|------------------------------|---------------------------|----------------------------------------|
| PRIMARY:                                     |                              |                           |                                        |
| SECONDARY:                                   |                              |                           |                                        |
| TERTIARY:                                    |                              |                           |                                        |
| COURSE:                                      |                              |                           |                                        |
| TERTIARY: (if transferred to another school) |                              |                           |                                        |
| COURSE:                                      |                              |                           |                                        |
| VOCATIONAL:                                  |                              |                           |                                        |
| MASTERS:                                     |                              |                           |                                        |
| POST GRADUATE COURSE:                        |                              |                           |                                        |

VI. PREVIOUS EMPLOYMENT HISTORY: (starting with the most recent)

|                                |  |                          |  |
|--------------------------------|--|--------------------------|--|
| NAME OF COMPANY/ EMPLOYER:     |  | ADDRESS:                 |  |
| JOB TITLE:                     |  |                          |  |
| SUPERIOR'S/ SUPERVISOR'S NAME  |  | AWARDS/ MERITS RECEIVED: |  |
| SUPERVISOR'S CONTACT NUMBER/S: |  | START DATE:              |  |
| REASON FOR LEAVING:            |  | END DATE:                |  |
|                                |  | ENDING SALARY:           |  |

|                                |  |                          |  |
|--------------------------------|--|--------------------------|--|
| NAME OF COMPANY/ EMPLOYER:     |  | ADDRESS:                 |  |
| JOB TITLE:                     |  |                          |  |
| SUPERIOR'S/ SUPERVISOR'S NAME  |  | AWARDS/ MERITS RECEIVED: |  |
| SUPERVISOR'S CONTACT NUMBER/S: |  | START DATE:              |  |
| REASON FOR LEAVING:            |  | END DATE:                |  |
|                                |  | ENDING SALARY:           |  |

VII. TRAININGS/ SEMINARS ATTENDED (OUTSIDE OF HTMT)

| TRAININGS/ SEMINARS ATTENDED | INCLUSIVE DATES | FACILITATOR/ SPEAKER |
|------------------------------|-----------------|----------------------|
|                              |                 |                      |
|                              |                 |                      |
|                              |                 |                      |
|                              |                 |                      |
|                              |                 |                      |

**VII. TRAININGS/ SEMINARS ATTENDED (OUTSIDE OF HTMT)**

| TRAININGS/ SEMINARS ATTENDED | INCLUSIVE DATES | FACILITATOR/ SPEAKER |
|------------------------------|-----------------|----------------------|
|                              |                 |                      |
|                              |                 |                      |
|                              |                 |                      |
|                              |                 |                      |
|                              |                 |                      |

### VIII. EXTRA CURRICULAR ACTIVITIES

| NAME OF ORGANIZATION | POSITION HELD | INCLUSIVE DATES |
|----------------------|---------------|-----------------|
|                      |               |                 |
|                      |               |                 |
|                      |               |                 |

## IX. ADDITIONAL INFORMATION

|                                                                                                                                                    |  |                                |  |                             |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------|--|--------------------------------|--|-----------------------------|--|
| CAN YOU DRIVE?                                                                                                                                     |  | CAN YOU OPERATE THE FOLLOWING: |  | FOREIGN LANGUAGES           |  |
|                                                                                                                                                    |  |                                |  | a) BEGINNER                 |  |
| WHAT TYPE OF LICENSE DO YOU HAVE?                                                                                                                  |  | COPIER:                        |  | Kindly indicate if you are: |  |
|                                                                                                                                                    |  |                                |  | b) INTERMEDIATE             |  |
|                                                                                                                                                    |  | FAX MACHINE:                   |  | (ex. English-Beginner)      |  |
|                                                                                                                                                    |  |                                |  | c) EXPERT                   |  |
| ARE YOU COMPUTER LITERATE? _____                                                                                                                   |  |                                |  | READ:                       |  |
|                                                                                                                                                    |  |                                |  |                             |  |
|                                                                                                                                                    |  |                                |  |                             |  |
| IF YES, HOW WOULD YOU RATE YOURSELF WITH THE FOLLOWING COMPUTER APPLICATIONS?<br>(PLEASE INDICATE IF YOU'RE A BEGINNER, INTERMEDIATE OR ADVANCED). |  |                                |  | SPOKEN:                     |  |
| MS WORD:                                                                                                                                           |  |                                |  |                             |  |
| MS EXCEL:                                                                                                                                          |  |                                |  |                             |  |
| MS POWERPOINT:                                                                                                                                     |  |                                |  |                             |  |
| INTERNET:                                                                                                                                          |  |                                |  |                             |  |
|                                                                                                                                                    |  |                                |  |                             |  |
| ALSO INDICATE OTHER PROGRAMS OR COMPUTER APPLICATIONS AND HOW WOULD YOU RATE YOURSELF? (ex. Flash - Intermediate)                                  |  |                                |  | WRITTEN:                    |  |
|                                                                                                                                                    |  |                                |  |                             |  |
|                                                                                                                                                    |  |                                |  |                             |  |
|                                                                                                                                                    |  |                                |  |                             |  |
|                                                                                                                                                    |  |                                |  |                             |  |

## X. SPIRIT SECTION

|                                                                                                                                    |  |                                                               |
|------------------------------------------------------------------------------------------------------------------------------------|--|---------------------------------------------------------------|
| Fun S.P.I.R.I.T. Survey!!!                                                                                                         |  |                                                               |
| (Sharing passions, Initiative and Recreation among Inspired Teams)                                                                 |  |                                                               |
| HOBBIES:                                                                                                                           |  | SPORTS OR MUSICAL<br>INSTRUMENTS YOU PLAY OR<br>YOUR GOOD AT: |
| HOW DO YOU MANAGE<br>STRESS?                                                                                                       |  |                                                               |
| WHAT DO YOU THINK SHOULD YOUR TEAM/ DEPARTMENT DO TO CELEBRATE IT'S SUCCESS?                                                       |  |                                                               |
| WHAT IS/ ARE YOUR DREAM HOBBY/ HOBBIES? (PLEASE SPECIFY WHAT SPORT OR ACTIVITY. (I.e. playing billiards, skydiving, surfing, etc). |  |                                                               |

## XI. IN CASE OF EMERGENCY

|                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                               |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px;"></div> | <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px;"></div> | <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px;"></div> |
| <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px;"></div> | <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px;"></div> | <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px; margin-bottom: 5px;"></div> <div style="border-bottom: 1px solid black; height: 20px;"></div> |

I hereby declare that the information indicated above is true and accurate in all aspects and that I withheld nothing which would affect my employment with **Sagility Philippines B.V.** .

Also, I hereby authorize **Sagility Philippines B.V.** , to investigate all facts concerning my skills, character, background and other information pertinent to my qualification as a job applicant.

I understand that my misrepresentation of falsification or any omission of facts of whatever nature in this application shall be considered sufficient cause for dismissal at any time during my employment.

Employee's signature over printed name

Date



## AUTHORIZATION FORM

I hereby authorize release to **Sagility Philippines B.V.**, the academic information required below for my pending job application with said company.

**FULL NAME** : \_\_\_\_\_

**DEGREE/COURSE** : \_\_\_\_\_

**COLLEGE/UNIVERSITY** : \_\_\_\_\_

**ADDRESS/BRANCH** : \_\_\_\_\_

**STUDENT NO.** : \_\_\_\_\_

**DATES ATTENDED** : \_\_\_\_\_

**GRADUATION DATE** : \_\_\_\_\_

**SCHOOL EMAIL ADDRESS** : \_\_\_\_\_

**SCHOOL CONTACT NUMBER** : \_\_\_\_\_

**SCHOOL FAX NUMBER** : \_\_\_\_\_

\_\_\_\_\_  
**SIGNATURE OVER PRINTED NAME**

**DATE:** \_\_\_\_\_



## AUTHORIZATION FORM

I hereby authorize release to **Sagility Philippines B.V.**, the employment information required below for my pending job application with said company.

FULL NAME : \_\_\_\_\_

POSITION TITLE : \_\_\_\_\_

NAME AND BRANCH OF THE COMPANY : \_\_\_\_\_

COMPANY ADDRESS : \_\_\_\_\_

COMPANY CONTACT NUMBER : \_\_\_\_\_

COMPANY EMAIL ADDRESS : \_\_\_\_\_

DATES EMPLOYED (START DATE & END DATE : \_\_\_\_\_

EMPLOYEE NUMBER : \_\_\_\_\_

DEPARTMENT ASSIGNED : \_\_\_\_\_

REASON FOR LEAVING : \_\_\_\_\_

SUPERVISOR'S NAME : \_\_\_\_\_

SUPERVISOR'S CONTACT NUMBER : \_\_\_\_\_

SUPERVISOR'S EMAIL ADDRESS : \_\_\_\_\_

\_\_\_\_\_  
SIGNATURE OVER PRINTED NAME

DATE: \_\_\_\_\_



## AUTHORIZATION FORM

I hereby authorize **Sagility Philippines B.V.** to conduct a background check and to contact the individuals listed below as my character references in connection with my pending job application with the company.

### CHARACTER REFERENCE **(Five (5) Non Relative)**

NAME OF REFERENCE : \_\_\_\_\_  
RELATIONSHIP : \_\_\_\_\_  
CONTACT NUMBER : \_\_\_\_\_  
OCCUPATION : \_\_\_\_\_  
COMPANY : \_\_\_\_\_

NAME OF REFERENCE : \_\_\_\_\_  
RELATIONSHIP : \_\_\_\_\_  
CONTACT NUMBER : \_\_\_\_\_  
OCCUPATION : \_\_\_\_\_  
COMPANY : \_\_\_\_\_

NAME OF REFERENCE : \_\_\_\_\_  
RELATIONSHIP : \_\_\_\_\_  
CONTACT NUMBER : \_\_\_\_\_  
OCCUPATION : \_\_\_\_\_  
COMPANY : \_\_\_\_\_

NAME OF REFERENCE : \_\_\_\_\_  
RELATIONSHIP : \_\_\_\_\_  
CONTACT NUMBER : \_\_\_\_\_  
OCCUPATION : \_\_\_\_\_  
COMPANY : \_\_\_\_\_

NAME OF REFERENCE : \_\_\_\_\_  
RELATIONSHIP : \_\_\_\_\_  
CONTACT NUMBER : \_\_\_\_\_  
OCCUPATION : \_\_\_\_\_  
COMPANY : \_\_\_\_\_

SIGNATURE OVER PRINTED NAME

DATE: \_\_\_\_\_

11th Floor Zeta Tower, Bridgetowne, E. Rodriguez Jr. Avenue, Ugong Norte, Quezon City, 1110 Philippines



I hereby acknowledge and affirm that my computer system specifications and work are in adherence to the requirements for which as stated above. If I am unable to comply at this time, I commit and pledge that the same shall be obliged with on or before my endorsement to the production phase of my employment, upon successfully passing for which.

I further state and acknowledge that my inability to do so shall mean my disqualification from employment under Failure to abide by policies and procedures (Work at Home Set Up Requisites) as provided for in the company code of conduct.

Understanding that there is the business need to upgrade my internet wired connectivity, I am committing to ensure that my internet speed will be upgraded to a minimum of 25 mbps on or before I hit production. This is likewise in line with the transitioning to the WAH setup. This is also a pre requisite to the deployment of the assigned desktop.

✓ **SIGNATURE OVER PRINTED NAME**



## PROPRIETARY INFORMATION AND CONFIDENTIALITY AGREEMENT

Employee Name: \_\_\_\_\_

### Policy Scope

Use of **Sagility Philippines B.V. Branch Office** computing facilities and [applications](#) is a privilege granted only to responsible users. Responsible computing implies the ethical use [and protection](#) of the computer and [applications](#) as a tool.

The purpose of the present document is to make clear the consequences for anyone found guilty of interfering with the corporation's computer-based facilities, systems and applications.

### Details

The following are the activities deemed illegal and would subject the responsible employee suspension, immediate termination or [civil/criminal liability](#).

1. Willful introduction of computer viruses, worms and Trojan horses into **Sagility Philippines B.V. Branch Office** systems.
2. Attempted vandalism of equipment or software such as physical destruction of computer equipment, destruction of cabling and network infrastructures, and destruction and alteration of system files and applications. This also includes denial-of-service attacks perpetrated by end-users.
3. Attempts to gain unauthorized access and privileges by defeating network security (hacking), bypassing proxy servers, stealing/sharing network passwords, accessing classified system folders and documents, and exploiting system weaknesses and vulnerabilities.
4. Data espionage through the use of programs such as network sniffers, key loggers, backdoor Trojans, and the like, without the approval of CT.
5. Breach of the intellectual property laws through the use of unlicensed software (software not approved by CT) and the distribution and use of illegally obtained MP3s and movies.
6. **All Intellectual Property Rights work done by employees as part of their normal or other duties is owned by the organization. This includes applications such as systems design, program codes, etc. Also, taking proprietary information when the employee leaves the organization can result in an infringement of the proprietary/copyright law which could result to a criminal liability even if the employee is no longer with the organization.**

In addition, failure to report IT-related security breaches will also be subject to disciplinary actions which may or may not be progressive in nature. An IT-related security breach can be regarded as a series of illegal activities whose ultimate result is damage to or loss of data from an information system.

signature





### Consequences of misuse

Because of its potentially serious consequences to the efficiency and stability of **Sagility Philippines B.V. Branch Office** systems, any act of data espionage, computer misuse, system penetration and hacking, and failure to report IT related security breaches will be generally regarded as gross acts of misconduct. **Sagility Philippines B.V. Branch Office** reserves the right to take legal actions which includes suspension or termination of the employee in the case of gross infringement of the present IT Security Guidelines. Violators will immediate be reported to HR whereby the appropriate sanctions will be carried out.

Where hacking is a criminal offence, offenders may also be liable to criminal prosecution. In addition, violation of copyright and intellectual privacy laws can give rise to civil and criminal liability on the part of the infringer as well.

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I recognize that **Sagility Philippines B.V. Branch Office**, its related or affiliated entities and their predecessors or successors, are engaged in, among others, the sale of call center, retail management and information and related services to customers worldwide, and that this business necessitates a continuous program of research, marketing and customer solicitation and contact.

I understand that my association and/or employment with the Company creates in me a duty of trust and confidentiality to the Company and to the Affiliates with respect to any information (a) related, applicable or useful to the business of the Company; or (b) resulting from tasks assigned to me by the Company; or (c) regarding the particular needs and desires of any of the Company's customers, which may be made known to me by the Company, or by any client or customer of the Company, or learned by me during the period of my association and/or employment.

As part of the consideration for my association and/or employment with the Company, and the compensation to be received by me from the Company from time to time, I hereby agree as follows:

1. For purposes of this Agreement, "Proprietary Information" shall mean information generally unavailable to the public that has been created, discovered, developed or otherwise become known to the Company, which information has economic value or potential economic value to the business in which the Company is or will be engaged in. Proprietary Information shall include, but not be limited to, the Company's: trade secrets; strategic plan; marketing and sales reports and forecasts; financial information (such as annual sales, expenses, and gross and net profits); customers, broker and supplier lists and any modifications or enhancements of the same; financial terms or arrangements with customers, brokers or suppliers; training materials; processes; data; know-how; business forms; improvements; discoveries; developments; designs; techniques; programs and information (whether or not in writing), which have actual or potential economic value to the Company. Without limiting the foregoing, Proprietary Information shall specifically include:
  - Potential and actual customers or customer lists;
  - Research about potential or actual customers or customer lists; and
  - Any duplication, reproduction or excerpt in any form whatsoever, of the information contained in such customer research or customer lists.

signature



- scope of services delivered to customers
2. At all times, during my association and/or employment with the Company, and after the termination of such association and/or employment, whether the termination is voluntary or involuntary, for any reason or no reason, or by disability, I will keep in strictest confidence and trust all Proprietary Information, and I will not disclose, use, or induce or assist in the use or disclosure of any Proprietary Information or Company rights pertaining to Proprietary Information, or anything related to the same, without the prior express written consent of the Company. I further agree that at any time after the termination of my association and/or employment with the Company, I will not use the Proprietary Information to contact any of the Company's customers, clients, or prospects.
  3. During and subsequent to the period of my association and/or employment, I agree that, without the prior express written consent of the Company, I will not:
    - Disclose to others, use, copy or permit to be copied any Proprietary Information;
    - Remove Proprietary Information from Company premises except in the ordinary course of conducting business for the Company;
    - Assert any claim of ownership or other property interest in any Proprietary Information; or
    - Divulge to any person any information received during the course of my association and/or employment concerning the business of the Company and its financial condition.
  4. Upon termination of my association and/or employment with the Company, I will:
    - Immediately deliver to the Company any Proprietary Information, including all reproductions in any format, in my possession or control; and
    - Permit the Company to inspect any materials to be removed by me from Company premises.
  5. During my association and/or employment with the Company, and for a period of six (6) months thereafter, I will not, directly or indirectly, either alone or in concert with others:
    - Solicit or attempt to solicit, directly or indirectly, any of the Company's customers, clients, or prospects with respect to call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination; or
    - Recruit or attempt to recruit, directly or indirectly, any employee or personnel of the Company and the Affiliates for association and/or employment with any other organization which does business in call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination.
  6. In the event of the termination of my association and/or employment, I acknowledge that, under certain circumstances, employment with or activities on behalf of a competitor of the Company would inherently call upon me to reveal Proprietary Information, to which I had access or learned during my association and/or employment, in order to fulfill my duties or obligations to the competitor. Thus, during the 6-month period following termination of my association and/or employment with the Company, I will not accept any such employment or engage in any such activities which would require me to use or disclose Proprietary Information.
  7. I represent that I have not entered into, and I agree that I will not enter into, any agreement, either written or oral, in conflict with the terms of this Agreement. I also understand that in my service to the Company, I am not to breach any obligation of confidentiality that I have to former employers, and I have fulfilled all such obligations during my association and/or employment.
  8. I acknowledge that irreparable injury will result to the Company and the Affiliates from my violation or continued violation of the terms of this Agreement, and I expressly agree

signature



that the Company and the Affiliates shall be entitled, in addition to damages and any other remedies provided by law, to an injunction or other equitable remedy respecting such violation or continued violation by me.

9. I acknowledge that in the event of my violation of this agreement, I may be subject to legal, civil, criminal and/or administrative action; and understand that I may be held liable for costs, damages and/or fees.
10. If any provision of this Agreement is held to be unenforceable for any reason, that provision shall be ineffective only to the extent of such unenforceability and shall not invalidate or otherwise render ineffective any other provision of this Agreement.
11. No implied waiver by the Company or the Affiliates of any provision in this Agreement shall arise in the absence of a waiver in writing signed by the Company or the Affiliates, and no waiver by the Company or the Affiliates with respect to a specific circumstance, event or occasion shall be construed as a continuing waiver as to similar circumstances, events or occasions.
12. This Agreement contains the sole and entire agreement and understanding between the Company and myself with respect to its subject matter, and supersedes and replaces any prior agreement to the extent any such agreement is inconsistent with the terms of this Agreement.
13. This Agreement can be amended, modified, released or changed, whole or in part, only by a written agreement signed by the Company and myself.
14. This Agreement shall be binding upon me, my heirs, executors, assigns and administrators, and shall inure to the benefit of the Company and the Affiliates, and their successors or assigns.

**I understood the above-mentioned policies and guidelines. I am fully aware that illegal use of IT facilities and applications will result to a disciplinary action (including termination) and civil/criminal liability.**

Discussed by:

---

Trainee's Signature over Printed Name

---

Immediate Head's Signature over Printed Name

Date: \_\_\_\_\_

Account / Division: \_\_\_\_\_



### **TRAINING AGREEMENT AND LIABILITY WAIVER**

I, \_\_\_\_\_ of \_\_\_\_\_ hereby voluntarily agree to undergo at SAGILITY PHILIPPINES B.V. (BETAINE) \_\_\_\_\_ hours of On-the-Job Training (OJT) which is an academic requirement under the following terms and conditions:

- a. That I shall abide by all the Company's policies, rules and regulations and shall comply with all those imposed for the program, otherwise, I shall be excluded from further participation;
- b. That I shall exercise due care and diligence in the performance of all tasks assigned to me;
- c. That SAGILITY PHILIPPINES B.V. (BETAINE) will not be obliged to employ me after my training with the Company, even as I affirm that there exists and shall exist no employee-employer relation between SAGILITY PHILIPPINES B.V. (BETAINE) and me arising from or in relation to my work contemplated by this Agreement;
- d. That SAGILITY PHILIPPINES B.V. (BETAINE) shall provide me with relevant on-the-job training to supplement my academic training;
- e. That SAGILITY PHILIPPINES B.V. (BETAINE) shall not in any way be held liable for any accident/injury that I may suffer during and in any course of my training and in going to and from my training site;
- f. That I shall be made answerable for any and all liabilities for damage to property or injury to third persons occasioned or caused by my intentional or negligent acts of fault while, during and in the course of my training.

IN WITNESS TO THE TRUTH OF THE FOREGOING, I have signed this \_\_\_\_\_ day of \_\_\_\_\_ in Quezon City, Philippines.

\_\_\_\_\_  
Printed and Signature of Student/Trainee

Approved by:

**Annabelle M. Martinez**  
Associate Vice President for Human Resources

## TELEWORKING TERMS AND CONDITIONS

I, \_\_\_\_\_, the undersigned, agree to perform my services as an Employee of SAGILITY under the following terms and conditions for any period I agree to be placed under a Teleworking/Work at Home (WAH) arrangement during the term of employment, and in consideration of the covenants stipulated herein, hereby voluntarily agree to perform, comply, and undertake the following:

### I. TELEWORKING/WORK FROM HOME ARRANGEMENT

During the period under any WAH arrangement, the undersigned shall be permitted to perform his/her scope of work in a SAGILITY-approved WAH workspace located at a SAGILITY approved location outside of SAGILITY premises. During this period, the undersigned shall be granted remote access to Client/SAGILITY systems, networks, and online resources using SAGILITY-assigned desktops, laptops, devices, and network equipment strictly under the terms and conditions herein provided.

### II. SCOPE OF TELEWORKING CONSENT AND UNDERTAKING

This document enumerates the obligations, warranties and representations binding the undersigned during any period during his/her employment wherein a WAH arrangement is in effect. The terms of this document shall be supplemental to all existing and applicable SAGILITY policies, rules and procedures including the Company's Employee Code of Conduct, and those relating to information confidentiality, data privacy and security.

SAGILITY maintains the right to amend and/or modify this document to conform to any future changes to, and developments in, the undersigned's scope of work under an applicable WAH arrangement and due to business necessity, subject to sufficient notice and, where applicable, consent.

### III. OBLIGATIONS OF UNDERSIGNED

The undersigned agrees to comply and abide by his/her obligations under this Section during any period wherein a WAH arrangement is in effect. Specifically, the undersigned shall:

- i. Regularly log into his/her SAGILITY-assigned desktop, laptop, device and/or system in accordance with his/her documented scope of work/job/role and shift schedule as specified by his/her reporting manager or designee.
- ii. Strictly access/use his/her SAGILITY-assigned desktop, laptop, device and/or system only in relation to his/her documented scope of work/job/role, within the SAGILITY





approved WAH workspace, and in accordance with all existing and applicable SAGILITY policies, rules and procedures including the Company's Employee Code of Conduct and those relating to data privacy and security. As such, the undersigned shall not access/use any unauthorized websites, applications, software, equipment, or tools in relation to the aforementioned resources.

iii. Exercise utmost care, caution and due diligence in the use of his/her SAGILITY assigned desktop, laptop, device and/or system while the same are in his/her custody;

iv. Prohibit unauthorized persons, including immediate family members, relatives, friends, visitors and other non-SAGILITY personnel from entering the SAGILITY approved workspace and/or viewing/using/accessing his/her SAGILITY-assigned desktop, laptop, device and/or system, whether directly or indirectly and whether during work hours or otherwise.

v. Not use any mobile device or phone or any other electronic/magnetic/optical device with recording/photographic capabilities during his/her work shift, especially while he/she is accessing/using his/her SAGILITY-assigned desktop, laptop, device and/or system.

vi. Not bring his/her SAGILITY assigned desktop, laptop, device and/or system to any location other than the SAGILITY-approved WAH workspace;

vii. Not record, copy, reproduce, disclose, transmit, use or process, in any form, including digital recording or handwritten notation, any information, including client customer account information such as SSN, Credit Card Numbers, or personal data and/or confidential and proprietary information of SAGILITY for purposes outside of his/her documented scope of work/job/role during the entire course of the WAH arrangement.

viii. Protect his/her SAGILITY-assigned desktop, laptop, device and/or system and any information, records and/or materials under his/her access, control and/or custody by reason of his/her documented scope of work/job/role during the WAH arrangement from any unauthorized or accidental access, use, modification, destruction, or disclosure regardless of the media through which such access, control and/or custody is exercised, the locations thereof, or the systems and/or processes used in the performance thereof;

ix. Immediately notify his/her reporting manager/technical Single Point of Contact of any failure or malfunction of his/her SAGILITY-assigned desktop, laptop, device and/or system; any unauthorized access to such resources, information, records and/or materials under his/her access, control and/or custody by reason of his/her documented scope of work/job/role during the WAH arrangement; and any security incident affecting the confidentiality, availability and integrity of such information assets, including personal data;





x. Join the patching bridge on a monthly basis for IT to install required system updates to ensure security of the device. Major upgrades/ maintenance may be required to the machine which would require the undersigned to bring the computer to the office for system upgrade/ maintenance.

xi. Immediately return to the Company his/her SAGILITY-assigned desktop, laptop, device and/or system upon completion of the WAH arrangement and/or separation from the company.

xii. As agreed upon in **Section IV** of this document, he/she will take accountability and possible salary deduction in case the equipment is lost or damaged and is caused by his/her fault or negligence. Upon separation from Sagility, the employee is expected to return his/her assets on site. The severed employee has the option to personally drop-off the issued equipment back to the site or request for the company to pick-up the issued equipment, except for unserviceable areas. For those in unserviceable areas, the severed employee agrees to return or ship back the equipment at his/her own cost. Failure to return or surrender the equipment will cause Sagility to file the applicable criminal charges if the value of the equipment cannot be covered by the Final Pay of the severed employee.

xiii. Fully comply and abide by all obligations, warranties and representations contained herein as well as all WAH and other applicable policies, rules and procedures including the Company's Employee Code of Conduct, and those relating to information confidentiality, data privacy and security.

#### **IV. EMPLOYEE'S CONFORMITY**

- i. That in case the equipment issued to the undersigned is lost or damaged due to the fault or negligence of the employee, or upon failure to return said equipment after demand, he/she hereby authorizes and gives his/her consent to SAGILITY to deduct from his/her salary the value of the lost equipment or the value of the damage caused.
- ii. That upon his/her separation from SAGILITY, the undersigned authorizes and consents to deductions on his/her final pay the value of the unreturned equipment.

#### **V. WARRANTIES AND REPRESENTATIONS**

The undersigned warrants and represents that:

- i. He/she is aware that his/her SAGILITY assigned desktop, laptop, device, system and/or SAGILITY-approved WAH workspace are subject to monitoring. In the event of any deviation from or breach to the terms of this document and all





WAH and other applicable policies, rules and procedures, for which he/she may be subject to disciplinary action.

- ii. He/she shall permit any duly authorized SAGILITY representative to physically visit/inspect the SAGILITY-approved WAH workspace anytime during his/her scheduled work hours to ensure the proper performance of his/her work under the WAH arrangement, including but not limited to the maintenance of his/her SAGILITY assigned desktop, laptop, device and/or system or the audit of his/her work area. Entry into the WAH premises includes physical access to the said area or through the use of webcam facilities, Closed Circuit Television (CCTV) Cameras and use of virtual/remote desktop viewing/monitoring by authorized SAGILITY personnel.
- iii. In the implementation of the above remote monitoring facilities, he/she fully understands and agrees to the following:
  - 1. SAGILITY's use of an Information Security/Data Protection Tool which will allow the Company to have remote and real time access to SAGILITY-assigned desktops, laptops, devices and/or systems.
  - 2. This Information Security/Data Protection Tool has capabilities for audio and video monitoring and recording of the undersigned's services for the Company during working hours and at the SAGILITY approved WAH workspace, including:
    - a. Automated facial authentication, agent expression and attentiveness detection
    - b. Automated mobile camera detection
    - c. Automated detection of unauthorized persons during work hours and at the SAGILITY-approved WAH workspace
    - d. Automated detection of unauthorized obstruction to video monitoring devices
  - 3. The automated detection capabilities of the Information Security/Data Protection Tool are only to intended to capture imagery of possible/suspected violations to the terms of this document and to applicable SAGILITY policies, rules, and procedures, specifically those relating to information confidentiality, data protection and security. Any activity flagged by the Information Security/Data Protection Tool shall be cause for the Company to conduct further investigation subject to SAGILITY's disciplinary procedures and the requirements of due process. At no instance shall the Information Security/Data Protection Tool findings constitute an immediate attribution of fault or liability. Likewise, employees





subject to any investigation hereunder shall be provided access to any captured imagery and be given an opportunity to dispute the same.

4. As a result of its functions, the Information Security/Data Protection Tool may inadvertently capture the imagery of the undersigned's family members, friends or visitors, should they be allowed to enter the SAGILITY-approved WAH workspace in violation of the terms of this document. While SAGILITY shall use its best efforts to ensure that the said tool is implemented only to promote security and safety of Information and data accessed by the undersigned and for the purposes of evaluation of the latter's productivity as an employee, he/she acknowledges his/her responsibility to:
    - a. Inform his/her family members, friends, or visitors of the restrictions from and implications of entering into the SAGILITY approved WAH workspace, including the possible capture of their image and likeness by the Information Security/Data Protection Tool and the purpose for the processing thereof; and
    - b. Ensure that no unauthorized person enters the SAGILITY-approved WAH workspace.
  5. SAGILITY shall ensure that any personal data captured by the Information Security/Data Protection Tool is only retained for a limited period or until the lawful and legitimate purpose of the processing, as explained in this document, is achieved.
  6. The undersigned has received a demonstration of the functionality of the Information Security/Data Protection Tool with remote audio and video monitoring capabilities in real time and understands the applications and functionalities covered by this Tool.
- iv. He/she agrees to comply/abide by the terms contained hereof during any period during his/her employment wherein a WAH arrangement is in effect.



v. By signing this consent form, the undersigned hereby declares, consents to & confirms that:

1. He/she has read, understood, and agreed to abide by and be bound to the terms, warranties and representations contained in this document as well as the applicable SAGILITY policies, rules and procedures.
2. He/she is aware that any violations to the SAGILITY policies would result in disciplinary action that range up to termination of employment and/or legal action.

✓ **Full Name of the employee:** \_\_\_\_\_

✓ **Employee Number:** \_\_\_\_\_

✓ **Contact Number:** \_\_\_\_\_

✓ **Account:** \_\_\_\_\_

✓ **Signature:** \_\_\_\_\_

✓ **Date:** \_\_\_\_\_

## ACCEPTABLE USE AND INFORMATION CONFIDENTIALITY AGREEMENT

### I. Policy Scope

The use of **Sagility Philippines B.V** (“BETAINE/Company”) information and communications technology (“ICT”) and computing facilities, systems and applications including those used in the processing of personal data (please see enumeration below) and other proprietary information assets is a privilege granted only to authorized and responsible users within the Company. Responsible use implies ethical conduct, diligent efforts to protect such resources, and faithful compliance with the law and to the Company’s declared and legitimate purpose/s of such use.

This Acceptable Use and Information Confidentiality Agreement is intended to protect, not only the Company, its employees and partners, but also data subjects and individuals outside of the Company whose personal data may be impacted by any damaging action contrary to the responsibilities and obligations set forth herein. It makes clear the consequences for anyone found guilty of mishandling or interfering with the Company’s computer-based facilities, systems and applications and/or misusing its information resources contrary to this agreement and its provisions on confidentiality.

### II. General Obligations

Sagility Philippines B.V proprietary information and personal data under its control and custody stored on electronic and computing devices whether owned or leased by Sagility Philippines B.V, the employee or a third party remain the sole property of Sagility Philippines B.V. You must ensure through legal or technical means that such proprietary information and personal data are protected at all times as outlined within this document and as required by the Information Security Policy.

1. Sagility Philippines B.V employees are expected to exercise good judgment in the reasonable use of such assets. Any uncertainty as to the standard of acceptable use of such assets must be resolved through proper consultation and documentation with the appropriate supervisor or manager.
2. All Sagility Philippines B.V ICT and computing facilities, systems and applications, especially those containing proprietary information and personal data under its control and custody must be used strictly for legitimate Sagility Philippines B.V business, only upon due authorization and to the extent access to such resources is necessary to the performance of Sagility Philippines B.V -mandated functions and duties.
3. Only approved technology products must be used. Users of Sagility Philippines B.V resources shall not install or use any software without approval and guidance from the Company.
4. Personal data under the control and custody of Sagility Philippines B.V shall not be transmitted over the Internet outside of approved channels and unless properly encrypted according to the Company’s standards. Use of personal or free e-mail for such transmissions are absolutely prohibited.

5. Non-company issued mobile and computing devices are prohibited from connecting to any Sagility Philippines B.V -controlled network or web application and/or from accessing personal data under its control and custody except where such devices have been approved by the Company and are deemed fully compliant with its data security standards.
6. Sagility Philippines B.V employees are responsible for reporting any accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, proprietary information and personal data under the Company's control and custody.

### **III. Unacceptable Use**

The following are the activities deemed illegal and would subject the responsible employee, upon due notice and investigation, to suspension, immediate termination or civil/criminal liability:

1. Willful introduction of computer viruses, worms, Trojan horses and similar malicious software into Sagility Philippines B.V systems;
2. Attempted vandalism of equipment or software such as physical destruction of computer equipment, destruction of cabling and network infrastructures, and destruction and alteration of system files and applications. This also includes denial-of-service (DoS) and similar attacks perpetrated by end-users;
3. Attempts to gain unauthorized access and privileges by defeating network security (hacking), bypassing proxy servers, stealing/sharing network passwords, accessing classified system folders and documents, and exploiting system weaknesses and/or vulnerabilities;
4. Accessing proprietary information and/or personal data under the control and custody of Sagility Philippines B.V, a server or an account for any purpose other than conducting business;
5. Data espionage through the use of programs such as network sniffers, key loggers, backdoor Trojans, and the like;
6. Unauthorized disclosure, malicious and/or negligent handling of access controls such as account passwords and/or encryption keys;
7. Breach of the intellectual property laws through the use of unlicensed software (software not approved by the appropriate office) and the distribution and use of illegally obtained MP3s, movies and such other media content; and
8. Unauthorized use of all Intellectual Property Rights work done by employees as part of their normal or other duties as owned by the Company. This includes applications such as systems design, program codes, etc. Also, taking proprietary information when the employee disengages from the Company can result in an infringement of the proprietary/copyright law which could result to a criminal liability even if the employee is no longer with the Company.



Any failure to report IT-related security breaches will also be subject to disciplinary actions which may or may not be progressive in nature. An IT-related security breach can be regarded as a series of illegal activities whose ultimate result is damage to or loss of data from an information system.

#### **IV. Consequences of misuse**

Because of its potentially serious consequences to the efficiency, stability and security of Sagility Philippines B.V ICT and computing facilities, applications and/or systems, and to individual data subjects, any act of data espionage, computer misuse, system penetration and hacking, and failure to report IT related security breaches will be generally regarded as gross acts of misconduct. Sagility Philippines B.V reserves the right to take necessary and appropriate legal actions which includes suspension or termination of the employee in the case of gross infringement of the present IT Security Guidelines. Violators will immediately be reported to HR whereby the appropriate sanctions will be carried out.

Where hacking is a criminal offence, offenders may also be liable to criminal prosecution. In addition, violation of copyright and intellectual privacy laws can give rise to civil and criminal liability on the part of the infringer as well.

#### **V. Personal Undertaking on Confidentiality of Sagility Philippines B.V Proprietary Information and Personal Data under its Control and Custody**

I recognize that Sagility Philippines B.V, its related or affiliated entities and their predecessors or successors, are engaged in, among others, the sale of call center, retail management and information and related services to customers worldwide, and that this business necessitates a continuous program of research, marketing and customer solicitation and contact, which may include the collection and processing personal data.

I understand that my association and/or employment with the Company creates in me a duty of trust and confidentiality to the Company, to its Affiliates, and to data subjects with respect to any (a) information related, applicable or useful to the business of the Company; (b) information resulting from tasks assigned to me by the Company; (c) information regarding the particular needs and desires of any of the Company's customers, which may be made known to me by the Company, or by any client or customer of the Company, or learned by me during the period of my association and/or employment; or (d) personal data collected from such data subjects pursuant to declared and legitimate purposes of the Company.

As part of the consideration for my association and/or employment with the Company, and the compensation to be received by me from the Company from time to time, I hereby agree as follows:

1. For purposes of this Agreement, "Proprietary Information" shall mean information generally unavailable to the public that has been created, discovered, developed or otherwise become known to the Company, which information has economic value or potential economic value to the business in which the Company is or will be engaged in. Proprietary Information shall include, but not be limited to, the Company's: trade secrets; strategic plan; marketing and sales reports and forecasts; financial information (such as annual sales, expenses, and gross and net profits); customers, broker and supplier lists and any modifications or enhancements of the same; financial terms or



arrangements with customers, brokers or suppliers; training materials; processes; data; know-how; business forms; improvements; discoveries; developments; designs; techniques; programs and information (whether or not in writing), which have actual or potential economic value to the Company. Without limiting the foregoing, Proprietary Information shall specifically include:

- Potential and actual customers or customer lists;
  - Research about potential or actual customers or customer lists; and
  - Any duplication, reproduction or excerpt in any form whatsoever, of the information contained in such customer research or customer lists.
  - Scope of services delivered to customers
2. For purposes of this Agreement, “Personal Data” shall mean any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual or any information:
- a. About an individual’s race, ethnic origin, marital status, age, color, and religious, philosophical or political affiliations;
  - b. About an individual’s health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings;
  - c. Issued by government agencies peculiar to an individual which includes, but not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns; and
  - d. Specifically established by an executive order or an act of Congress to be kept classified.
3. At all times, during my association and/or employment with the Company, and after the termination of such association and/or employment, whether the termination is voluntary or involuntary, for any reason or no reason, or by disability, I will keep in strictest confidence and trust all Proprietary Information and Personal Data under Sagility Philippines B.V.’s control and custody; and I will not disclose, use, or induce or assist in the use or disclosure of any such Proprietary Information or Company rights pertaining to such Proprietary Information, including anything related to the same or any Personal Data under the Company’s control and/or custody, without the prior express written consent of the Company.
4. I further agree that at any time after the termination of my association and/or employment with the Company, I will not use the Proprietary Information or Personal Data to contact any of Sagility Philippines B.V.’s customers, clients, or prospects.
5. During and subsequent to the period of my association and/or employment, I agree that, without the prior express written consent of the Company, I will not:
- Disclose to others, use, copy or permit to be copied any Proprietary Information or Personal Data;



- Remove Proprietary Information or Personal Data from Company premises except in the ordinary course of conducting business for the Company;
  - Assert any claim of ownership or other property interest in any Proprietary Information or Personal Data; or
  - Divulge to any person any information, including Personal Data, received during the course of my association and/or employment concerning the business of the Company and its financial condition.
6. Upon termination of my association and/or employment with the Company, I will:
- Immediately deliver to the Company any Proprietary Information or Personal Data, including all reproductions in any format, in my possession or control;
  - Permit the Company to inspect any materials to be removed by me from its premises; and
  - Refrain from any further use whatsoever of such access, security credentials and/or such other privilege that I may have received and/or have been granted by the Company on account of my association and/or employment therewith.
7. During my association and/or employment with the Company, and for a period of six (6) months thereafter, I will not, directly or indirectly, either alone or in concert with others:
- Solicit or attempt to solicit, directly or indirectly, any of the Company's customers, clients, or prospects with respect to call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination; or
  - Recruit or attempt to recruit, directly or indirectly, any employee or personnel of the Company and the Affiliates for association and/or employment with any other Company which does business in call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination.
8. In the event of the termination of my association and/or employment, I acknowledge that, under certain circumstances, employment with or activities on behalf of a competitor of the Company would inherently call upon me to reveal Proprietary Information, to which I had access or learned during my association and/or employment, in order to fulfill my duties or obligations to the competitor. Thus, during the 6-month period following termination of my association and/or employment with the Company, I will not accept any such employment or engage in any such activities which would require me to use or disclose Proprietary Information.
9. I represent that I have not entered into, and I agree that I will not enter into, any agreement, either written or oral, in conflict with the terms of this Agreement. I also understand that in my service to the Company, I am not to breach any obligation of confidentiality that I have to former employers, and I have fulfilled all such obligations during my association and/or employment.
10. I acknowledge that irreparable injury will result to the Company and the Affiliates from my violation or continued violation of the terms of this Agreement, and I expressly agree



that the Company and the Affiliates shall be entitled, in addition to damages and any other remedies provided by law, to an injunction or other equitable remedy respecting such violation or continued violation by me.

11. I acknowledge that in the event of my violation of this agreement, I may be subject to legal, civil, criminal and/or administrative action; and understand that I may be held liable for costs, damages and/or fees.
12. If any provision of this Agreement is held to be unenforceable for any reason, that provision shall be ineffective only to the extent of such unenforceability and shall not invalidate or otherwise render ineffective any other provision of this Agreement.
13. No implied waiver by the Company or the Affiliates of any provision in this Agreement shall arise in the absence of a waiver in writing signed by the Company or the Affiliates, and no waiver by the Company or the Affiliates with respect to a specific circumstance, event or occasion shall be construed as a continuing waiver as to similar circumstances, events or occasions.
14. Any violation of the provisions and/or covenants stipulated in this Agreement shall entitle the Company to claim for liquidated damages in the amount of One Hundred Thousand Pesos (Php100,000.00) or actual and/or compensatory damages that may be incurred by the Company.
15. If any provision of this Agreement is unenforceable or invalid under any applicable law or is so held by applicable court decision, such unenforceability or invalidity shall not render this Contract unenforceable or invalid as a whole. In such event, such provision shall be changed and interpreted so as to best accomplish the objectives of the parties within the limits of applicable law or court decisions.
16. This Agreement contains the sole and entire agreement and understanding between the Company and myself with respect to its subject matter, and supersedes and replaces any prior agreement to the extent any such agreement is inconsistent with the terms of this Agreement.
17. This Agreement can be amended, modified, released or changed, whole or in part, only by a written agreement signed by the Company and myself.
18. This Agreement shall be binding upon me, my heirs, executors, assigns and administrators, and shall inure to the benefit of the Company and the Affiliates, and their successors or assigns.

*I confirm that I have read and fully understood the above-mentioned policies and guidelines. I am fully aware that illegal use of IT facilities and applications will result to a disciplinary action (including termination) and/or civil/criminal liability.*

- ✓ **Full Name of the employee:** \_\_\_\_\_
- ✓ **Signature:** \_\_\_\_\_
- ✓ **Date:** \_\_\_\_\_



# Policy For Code of Conduct

## Introduction

Sagility Operations Inc., its parent companies, affiliates, and subsidiaries; and its employees, agents, contractors, vendors, officers, and board members (the “Company” or “Sagility”) are guided by its company values. These values are the foundation of how it conducts itself and interacts with each other, its clients, suppliers, investors, and other stakeholders. The Company is committed to ensuring corporate compliance and promoting an ethical corporate culture by observing the highest standards of fair dealing, honesty, and integrity in its business activities.

## Purpose

The purpose of the Code of Conduct is to promote the continuous well – being of employees in the workplace, to maintain high standards of professional conduct and work performance at all times, and that compliance is everyone’s responsibility at the Company.

The Company encourages the reporting of any instance of suspected unethical, illegal, corrupt, fraudulent or undesirable conduct involving the Company’s business and provides protections and measures to individuals who make a disclosure in relation to such conduct without fear of victimization or reprisal.

The Company may invite officers, senior management and employees to attend training sessions to ensure ongoing education regarding the application of the policy.

Some of the topics addressed in this Code of Conduct may also be the subject of a more specific policy or policies. If there is a conflict between this Code of Conduct and a more specific policy, the more specific policy will prevail.

## Scope & Applicability

This Policy applies to any person who is, or has been, any of the following with respect to the company: employee (temporary and permanent), officer, director, contractor (including sub-contractors and employees of contractors), supplier (including employees of suppliers), consultant, auditor, associate, and relative, dependent, spouse, or dependent of a spouse of any of the above. This Policy is intended to apply to the above persons in all countries in which the Company operates a business.

## Policy Statement/s

The Code of Conduct aims to fulfil the following objectives:

- To ensure issues of noncompliance are reported timely and accurately through appropriate mechanisms.
- To ensure reported-suspected compliance incidents and violations are addressed and corrected timely.
- To establish minimum acceptable standards for professional conduct.
- To communicate corrective actions that address employee misconduct and employment problems.



### Reporting and Escalation:

- The Company Whistleblower procedures encourage and enable the Company employees and Subcontractors the opportunity to report suspected concerns regarding the Standards for Professional Code of Conduct and suspected compliance incidents or violations.
- The Company Employees and Subcontractors are required to report all concerns regarding the Standards for Professional Code of Conduct and suspected compliance incidents or violations immediately.
- Anyone who, in good faith, that immediately reports a suspected concerns, incident, or violation will be protected from retaliation.
- Suspected concerns, incidents, or violations can be immediately reported using the Integrity Hotline/Email, directly to management and/or supervisors, or directly to the Director, Human Resources or the Healthcare or Security Compliance Officer.
- Timely preliminary and possibly extensive investigations performed by management, compliance, human resources (HR), or legal and contractual obligations will be utilized to determine the severity of the reported-suspected concern, incident, or violation and level of required reporting and escalation-Ex. Leadership, Client, and Regulatory.
- All Company Employee and Subcontractor reported concerns regarding the Standards for Professional Code of Conduct and suspected compliance incidents or violations and the outcome of both preliminary and extensive investigations will be retained by the Director, Human Resources or the Healthcare or Security Compliance Officer for a period of ten (10) years.

A Person who falls within the scope of this Policy may make a report or disclosure under this Policy if such person has reasonable grounds to believe that a Company director, officer, employee, contractor, supplier, consultant or other person who has business dealings with the Company has engaged in conduct (Reportable Conduct) which is: dishonest, fraudulent or corrupt; Illegal (such as theft, dealing in or use of illicit drugs, violence or threatened violence and criminal damage to property); unethical including any breach of the Company's policies such as the Code of Conduct; oppressive or grossly negligent; potentially damaging to the Company, its employees or a third party; misconduct or an improper state of affairs; a danger, or represents a danger to the public or financial system; harassment, discrimination, victimization or bullying.

For the avoidance of doubt, Reportable Conduct does not include personal work-related grievances. A personal work-related grievance is a grievance about any matter in relation to an employee's current or former employment, having implications (or tending to have implications) for that person personally and that do not have broader implications for the Company. Examples of personal work-related grievances are as follows: an interpersonal conflict between an employee and another employee; a decision relating to the engagement, transfer or promotion an employee; a decision relating to the terms and conditions of engagement of an employee; a decision to suspend or terminate the engagement of an employee, or otherwise to discipline an employee. Personal work-related grievances should be reported to your manager or in accordance with the Company's Grievance Policy.

### Professional Conduct:

- Employees are expected at all times to exercise utmost discretion and conduct themselves in a professional manner directed at promoting the best interests of the Company.
- Employees should avoid any action that might adversely affect or publicly discomfit or discredit the Company, interfere with operations, or be offensive to clients or co-workers or be perceived as negative. This duty to act professionally extends to all activities within or outside the Company's facilities.
- Employees shall at all times be courteous and considerate to colleagues, any person who is dealing with the Company or any persons with whom the Employees deal with.
- Management and employees are expected to maintain a workplace environment that does not tolerate harassment, which may be of a sexual, physical, written or verbal nature.
- Employees are subject to the discipline of the Company and abide by the rules and regulations as set out herein, including any other communication issued by the management from time to time with regard to working requirements in the Company.



- In the event that any behavior or conduct is not acceptable to the work environment in the Company, management shall immediately bring this event to the notice of the Employee(s) verbally and by sending supporting communication via email referencing the relevant Company policy.
- Any such communication(s) shall require prompt response by the Employee(s) involved. In the event an Employee(s) have a question or concern about any such referenced policy, the HR Department will be included in any additional employee communication (verbal or written).
- Violation of the Company's policies or indulgence in any conduct that is inappropriate, unsatisfactory or unacceptable to the management, may subject the Employee to strict disciplinary action, which may include, but not be limited to, warning, demotion, re-assignment, discharge and the termination of services.
- Further, management reserves the right to take such action, including reporting the incident to the appropriate authorities (for example the Police in the case of an act amounting to a criminal offense), and request such authority to initiate suitable action in the matter, should circumstances so warrant.

#### **Ethics:**

- Employees are expected to adhere to all laws applicable to our business, in the jurisdiction that the employee is based in and to observe the highest standards of business standards and ethics.
- Employees are expected to compete fairly and ethically for all business opportunities. While participating in an RFI/RFP's, agreements or contract negotiations, employees must ensure that all statements, communications, and representations to customers/clients are completely accurate and truthful.

#### **Privacy and Security:**

- Confidentiality, Privacy, and Security Federal and state applicable laws require that the Company employees maintain the privacy and security of the Company and client confidential, proprietary, member and patient protected health information (PHI/ePHI).
- The Company employees are expected to treat internal and client confidential, proprietary, PHI and ePHI information with care and sensitivity and must not share such information with others unless the individuals have a legitimate need to know and have agreed to the Company confidentiality protections and policies.
- The Company employees are required to use the minimum amount of information needed to fulfill the intended request when the Company or client confidential, proprietary information, PHI or ePHI is being communicated, used, or transmitted.
- The Company employees are required to report all suspected privacy and security incidents and violations immediately. Anyone who, in good faith, that immediately reports a suspected Privacy, Security, or Employee Misconduct incident or violation will be protected from retaliation.

#### **Alcohol, Drugs and Narcotics:**

It is the policy of the Company to maintain a workplace (including common space) that is free from the effects of drugs, alcohol and other substance abuse, in order to provide a safe and healthy work environment. Employees who provide direct services to or on behalf of Company clients shall, in addition to all Company policies and procedures, comply with the Company's client contracts to the extent required in such contracts.



- Employees and any customers or visitors are prohibited from the use, sale, dispensation, distribution, possession, or manufacture of illegal drugs, controlled substances, narcotics, or alcoholic beverages on Company premises, work sites or Company-sponsored business functions held off-premises or whenever those activities may adversely affect job performance, job safety or the Company's reputation.
- Company-sponsored occasions, alcoholic beverages may be served to those of legal drinking age. During such events, Employees and invited guests are expected to exercise their discretion in the consumption of alcohol.
- Company will not hire, subject to central or state law restrictions, alcoholics or drug abusers whose current use of those substances prevents them from performing their jobs or who would constitute an adverse influence or a direct threat to the property or safety of others. Whenever applicants for employment are to be tested for the presence of illegal drugs or alcohol they will be informed in advance and in writing.
- Employees may, at the sole discretion of the Company, be subject to disciplinary action, up to and including termination of employment, for violation of this Code of Conduct requirement. Violations include, but are not limited to, possessing illegal or non-prescribed drugs and narcotics at work; being under the influence of illegal or non-prescribed drugs, narcotics or alcohol while working; using them while working; or dispensing, distributing, or illegally manufacturing or selling them on Company premises and work sites.
- Employees may be in possession of Company-issued equipment under their control may be subject to applicable central and local laws, searched and/or monitored at any times while on Company premises or work sites or while conducting Company business.
- Employees may be asked to take a test at any time to determine the presence of drugs, narcotics or alcohol, unless the tests are prohibited by law. Employees who agree to take the test must sign a consent form authorizing the test and the Company's use of the test results for purposes of administering its discipline policy. It is a violation of the policy for an employee to refuse consent for these purposes or to refuse to be tested for use of alcohol, narcotics or illegal drugs.
- Policy violations will result in disciplinary action and may result in termination. Tests and test results that are paid for by the Company are the property of the Company. The examination records will be treated as confidential and held in separate medical files. However, records of specific examinations, if required by law or regulation, will be made available to the employee, persons designated and authorized by the Employee, public agencies, relevant insurance companies, or the Employee's doctor.
- Employees must immediately report their use of over-the-counter or prescribed medications to the HR Department if such use might impair their ability to perform their job safely and effectively. A determination will then be made as to whether the Employee is able to perform the essential functions of the job safely and properly.

#### Non-Disclosure of Intellectual Property:

Information is a highly sensitive resource in every business.

- An Employee will frequently be entrusted with material of confidential nature and in many forms, including, but not limited to, documents, computer discs, CDs, phone lists, billing information, employment and salary details, etc.

- Employees should never disclose confidential Company information or comment on the financial performance of the Company at any time. It is inappropriate to disclose information that has not been formally and broadly released to the public through Company approved communications.
- One of the Company's most important assets is its intellectual property ("IP") which includes but is not limited to copyrights, patents, trademarks and trade secrets. An Employee is obligated to safeguard confidential information, the IP and trade secrets of the Company and its customers. This precludes the Employee from directly or indirectly using or disclosing, except as necessary in the ordinary course of business, confidential information, both during the course of his/her employment and after leaving the Company. Confidential information should not be discussed with anyone outside the Company and may be discussed within the organization only on a "need to know" basis. Employees also have a responsibility to avoid unnecessary disclosure of non- confidential internal information about the Company, its Employees, its customers and/or its suppliers.
- Discussions regarding the Company should remain limited to discussions of factual product/service capabilities and any reference to future performance or expectations for Company performance should be strictly avoided.
- The non-disclosure restriction includes and extends to any person directly not connected with the work-related subject matter, just not limited to possible disclosures to customers, business contacts, fellow employees, family members, friends, neighbors. For instance, "disclosure" can include verbal communication / symbolic representation, such as simple conversation, casual comments such as those made in elevators, restaurants or public transport may be overheard and should be avoided.
- All work products consisting of any document, information, material, or idea developed by or provided to an Employee in connection with the Employee's employment by the Company is the confidential and proprietary property of the Company. As such, no work product may be removed from the Company's premises at the time of termination of an Employee's employment with the Company.
- Employees will be required to sign and or acknowledge a non-disclosure agreement and such other agreements and policies as the Company may reasonably request and must treat information as proprietary Company property for which they are personally responsible.
- Employees are prohibited from attempting to access or obtain confidential information for which they have not received authorization.
- In the event of a conflict between the provisions of the non-disclosure agreement and this Code of Conduct, the provisions of the non-disclosure agreement shall prevail.
- All media inquiries and other inquiries of a general nature including requests to respond to statements should be referred to the designated authorized spokespersons of the Company.
- This limited list of approved individuals who can disclose information to the public is meant to ensure consistency and avoid improper or selective disclosure of material information. In addition, all press releases, publications, speeches, or other official declarations must be approved in advance by the Legal Department of the Company. Questions regarding Employee references or other information concerning current or former Employees should be referred to the HR Department.
- Information regarding the Company is readily available in the Internet. Unauthorized information that appears on the Internet may be inaccurate or untruthful. Please note, the Company does attempt to monitor this type of information. However, it does not control any information except that found on the Company's website.
- The Company considers inaccurate or untruthful information as a "market rumor." The Company does not respond to market rumors that may occur on the Internet or elsewhere. Therefore, Company



Employees are directed not to initiate or respond to communications through Internet “chat rooms”, “bulletin boards” or similar venues related to the Company.

- Employees should not discuss with the officers, directors, or Employees of competing organizations any topic that might give the impression of an illegal agreement in restraint of trade. These prohibited topics include pricing agreements, customer allocation, and division of operational territories.
- Employees are prohibited from disclosing “inside” information that could affect the market value of the Company’s securities to anyone outside the organization until that information has been made available to the public by management.
- Employees also are prohibited from using that information for their own personal profit.

#### Policy Violations:

- It is a condition of employment with the Company that an Employee will respect the confidentiality of all information and intellectual property (IP) and take necessary precautions to ensure that such information and IP are protected at all times.

Due to the serious nature of improper disclosure and the impact that unapproved disclosure may have on the Company, violations of the above Code of Conduct guidelines may result in disciplinary action, up to and including termination and legal action.

#### Conflict of Interest:

It is the policy of the Company to prohibit its Employees from engaging in any activity, practice, or conduct which conflicts with, or appears to conflict with, the interests of the Company, its customers, or its suppliers.

It is impossible to describe all of the situations that may cause or give the appearance of a conflict of interest, the prohibitions included in this Code of Conduct are not intended to be exhaustive and include only some of the more clear-cut examples.

- Employees are expected to represent the Company in a positive and ethical manner.
- Employees should avoid conflicts of interest and should refer questions and concerns about potential conflicts to their supervisors.
- Executive management and Employees who have contact with customers and suppliers may be required to sign a special statement acknowledging their understanding of an adherence to this requirement.
- Employees may not, directly or indirectly either on or off the job, engage in any conduct that is disloyal, disruptive, competitive, or damaging to the Company. Prohibited activity also includes any illegal act(s) in restraint of trade.
- Employees may not accept any employment relationship with any organization that does business with, or competes with, the Company. This prohibition on employment includes serving as an advisor to any such organization, unless said activity is conducted in the capacity of a representative of the Company.
- Employees must disclose any financial interest they or their immediate family have in any organization that does business with the Company or that competes with the Company. The Company may require divestiture of the interest if it considers the financial interest to be in conflict with the Company’s best interests.





- Employees and their immediate family may not accept gifts, any special discounts or loans from any person or firm doing, or seeking to do, business with the Company. Unsolicited Gifts received will be reported to the Compliance Officer and Legal.
- Employees may not give, offer, or promise, directly or indirectly, anything of value to any representative of a customer, of a potential customer, or of a financial institution in connection with any transaction or business that the Company may have with that customer, potential customer, or financial institution.
- Employees may acquire information about the Company, which, if known to the public, might affect the decision of an investor to buy, sell, or hold securities issued by the Company. Employees are prohibited from misusing inside information, prior to public disclosure, by purchasing or selling the Company's securities for their own benefit or for the benefit of members of their immediate family. In addition, Employees may not disclose inside information to anyone, either inside or outside the organization, who does not have a legitimate business need to know it.
- All officers and directors of the Company and Employees who own more than ten percent of the equity securities issued by the Company, if applicable, are prohibited from engaging in "short-swing" trading of securities issued by the Company by purchasing and selling, or selling and repurchasing, those securities within a period of less than six (6) months.
- Any conflict or potential conflict of interest must be disclosed to the Company. Failure to make such disclosure will result in disciplinary action, up to and including termination of employment.

#### Anti-Corruption:

- Conducting business with governments or government-owned operations is different than conducting business with private parties. What may be considered an acceptable practice in the private business sector may be improper or illegal when dealing with government officials. Improper or illegal payments, gifts, or entertainment to government officials is prohibited at the Company. "Government Officials" include employees of any government or government operation anywhere in the world, even low-ranking employees or employees of government-controlled entities, as well as political parties and candidates for political office.
- To the extent the Company engages in business outside of the United States and involved in transactions with foreign government officials, the Company will not only comply with the laws of the country involved, but also with the U.S. Foreign Corrupt Practices Act. This Act makes it illegal to pay or promise to pay money or offer anything of value to any non-U.S. government official for the purpose of directly or indirectly obtaining or retaining business. This ban on illegal payments and bribes also applies to agents or intermediaries who use funds for purposes prohibited by the statute.
- A bribe, which is never permissible at the Company, is giving or offering to give anything of value to a government official to influence a discretionary decision. Understanding the difference between a bribe and a facilitating payment is very important. The Company prohibits the payment of any bribe and will allow a facilitating payment only where it is necessary and legal.

#### Customer and Vendor Relations:

- It is the policy of the Company to be customer and service-oriented and to require Employees to treat customers and vendors in a courteous and respectful manner at all times.
- Employees must represent the Company in a positive manner and make customers feel appreciated when dealing with the Company.



- Employees whose jobs entail customer contact are expected to be familiar with and understand every aspect of the Company's products and services and to learn the customers' wants and needs. Such Employees should educate customers about the use of the organization's products and services and should seek new ways to serve customers.
- Employees are encouraged to immediately report recurring customer or vendor-related problems to their manager and to make suggestions for positive changes in Company policies or procedures to solve problems.
- Employees should be prepared to listen carefully to customer and/or vendor complaints and deal with them in a helpful, professional manner. If a disagreement arises, the Employee should explain Company policy respectfully and clearly and notify assigned management.
- Customers and/or vendors who become unreasonable, abusive, or subject the Employee to harassment should be immediately referred to the Employee's assigned manager
- Employees are required to immediately report Company internal or client suspected fraud, waste, and abuse (FWA). Anyone who, in good faith, that immediately reports suspected Fraud, Waste, and Abuse (FWA), or Employee Misconduct incident or violation will be protected from retaliation.
- Sagility retains all documentation to align and maintain Compliance with all applicable Healthcare Laws, Rules, Regulations, the Sagility Compliance Program, the Sagility Document Destruction and Retention Procedure, or the Sagility Payer or Provider requirements, whichever is longer.

#### Telephone Etiquette:

Employees should be polite and attentive when using the telephone. A positive telephone contact with a customer and/or vendor can enhance goodwill, while a negative experience can destroy a valuable relationship. The following procedures should be observed whenever possible:

- When answering the telephone, use a pleasant tone of voice, and identify yourself;
- If the person with whom the caller wishes to speak is on another line, ask if the caller wants to be placed on hold;
- If a caller has been placed on hold, carefully monitor the time and offer to have the call returned if the person called is not available within a reasonable period; and
- When a caller leaves a name, number, or message, make sure the information is recorded correctly and given promptly to the appropriate individual.

To measure and evaluate customer and/or vendor service and relationships, the Company may, subject to applicable central and local laws, access and monitor Employee telephone conversations made in the normal course of business. Employee whose communications are to be monitored will be asked to sign a consent form authorizing the monitoring.

#### Code of Conduct Violations:

Violations of the above Code of Conduct guidelines may result in disciplinary action, up to and including termination and legal action. Insofar as this Code of Conduct imposes any obligations on the Company, such obligations are not contractual and do not give rise to contractual rights. To the extent this Code of Conduct describes benefits





and entitlements for employees, they are discretionary in nature and are also not intended to be contractual. The Company may unilaterally introduce, modify, remove or replace this Code of Conduct at any time.

### **Making A Disclosure:**

The Company intends, at all times, to maintain a culture of honest and ethical behavior. Accordingly, if a person who falls within the scope of this Code of Conduct becomes aware of any Reportable Conduct, it is expected that such person will make a disclosure under this Policy. There are several ways to report or disclose any issue or behavior which is considered to be Reportable Conduct.

### **Reporting:**

An email address has been established for each geography of Company operations. A whistleblower may communicate Reportable Conduct to the corresponding email address of the whistleblower's location. The whistleblower's communication will be directed to the Company's designated Whistleblower Protection Officers:

#### **Geography Whistleblower email addresses:**

| Geography                | email address                                                                                  |
|--------------------------|------------------------------------------------------------------------------------------------|
| Colombia                 | <a href="mailto:whistleblower.col@sagilityhealth.com">whistleblower.col@sagilityhealth.com</a> |
| India                    | <a href="mailto:whistleblower.ind@sagilityhealth.com">whistleblower.ind@sagilityhealth.com</a> |
| Jamaica                  | <a href="mailto:whistleblower.jam@sagilityhealth.com">whistleblower.jam@sagilityhealth.com</a> |
| Philippines              | <a href="mailto:whistleblower.php@sagilityhealth.com">whistleblower.php@sagilityhealth.com</a> |
| United States of America | <a href="mailto:whistleblower.usa@sagilityhealth.com">whistleblower.usa@sagilityhealth.com</a> |

The Group CEO of the Company will designate two (2) Whistleblower Protection Officers. Whistleblower complaints of Reportable Conduct to the above email addresses will be routed to both Whistleblower Protection Officers who shall have the responsibility to work as a team and fulfil their obligations as specifically provided herein. In the event a whistleblower decides to escalate a complaint of Reportable Conduct, for whatever reason the whistleblower may determine, the whistleblower may direct a communication to the Company's designated whistleblower escalation email address:

#### **Global Whistleblower Escalation Email Address:**

[whistleblower.esc@sagilityhealth.com](mailto:whistleblower.esc@sagilityhealth.com)

Communications directed by the whistleblower to the above escalation email address will be routed to the Whistleblower Protection Officers and the Company's Group CEO. Any whistleblower communication of Reportable Conduct received outside of the protocol indicated above will be forwarded by the recipient of such communication to the applicable geographic email address indicated above to ensure the process established herein for whistleblower reporting, investigation and resolution is consistent in each whistleblower reporting incident.



### Anonymity:

Any person making a disclosure may make such disclosure anonymously. It may be difficult for the Company to properly investigate the matters disclosed if a report is submitted anonymously and therefore the Company encourages whistleblowers to share their identity when making a disclosure, however a whistleblower is not required to disclose his or her identity. Sagility protects whistleblowers from retaliation.

### References

Nil

## ACKNOWLEDGEMENT OF SAGILITY'S CODE OF CONDUCT

On the date of execution below, the undersigned, an employee of one of the companies affiliated with Sagility Operations Inc\*., confirm and acknowledge that the undersigned has read and understood the CODE OF CONDUCT and consent to and agree to adhere to the standards and requirements of such CODE OF CONDUCT.

✓ Signature of Employee: \_\_\_\_\_ ✓ Date: \_\_\_\_\_  
✓ Printed Name: \_\_\_\_\_ ✓ Place: \_\_\_\_\_  
Employee Number: \_\_\_\_\_ (Permanent Address)  
✓ Employer Company: \_\_\_\_\_ Sagility Philippines B.V.

Note: \* - Indicates Sagility Operations, Inc., and its global affiliates (doing business as "Sagility™") which are as follows:

- a. Sagility LLC, USA
- b. Sagility Provider Solutions LLC, USA
- c. Sagility Technologies LLC, USA
- d. Sagility Care Management LLC, USA
- e. Sagility India Private Limited, India
- f. Sagility Philippines B.V., Branch Office, Philippines
- g. Sagility (Jamaica) Limited, Jamaica
- h. Sagility (Colombia) S.A.S., Colombia

## EMPLOYEE PRIVACY NOTICE AND CONSENT FORM

### I. Introduction

As a globally recognized and preferred business process transformation partner to both local and foreign clients, Sagility Philippines B.V ("BETAINE") commits itself to the lawful and fair treatment of our employees' individual privacy rights. This Privacy Notice and Consent Form ("PNCF") reflects Sagility Philippines B.V's commitment to ensure that all employees, as data subjects, are adequately informed of the organization's processing activities with respect to their personal information and sensitive personal information (collectively, "personal data"), including their collection, use, storage, disclosure, and disposal. We endeavor to obtain your informed consent to continue processing your personal data strictly within the scope and purpose stated herein as well as in accordance with Republic Act No. 10173, or otherwise known as the Data Privacy Act of 2012 ("Data Privacy Act"), its corresponding Implementing Rules and Procedures ("IRR"), and the existing Memorandum Circulars and Advisories issued by the National Privacy Commission ("NPC").

Specifically, the PNCF, serves to inform you of the following:

- a) The categories of employee personal information we collect and the processes involved;
- b) The scope, source, and method of our personal information processing activities with respect to employee information;
- c) The purpose for such processing, the legitimate interests of the organization involved in, and the lawful basis of said processing;
- d) Who are the intended recipients of employee personal information;
- e) How long we retain employee personal information and the purpose of said retention;
- f) Your rights as data subjects who own and control the personal information being processed;

### II. Collection and Use of Personal Information

#### A. Categories of Personal Information Processed

Sagility Philippines B.V collects, generates, processes and/or maintains both personal and sensitive personal information about you as defined under Section 3, paragraphs (g) and (l) respectively, including the following:

#### Personal Information

1. Employee's Full Name
2. Permanent Address
3. Address history
4. Gender
5. Electronic Mail Address
6. Contact Information

#### Sensitive Personal Information

1. Civil Status
2. Place of Marriage
3. Date of Marriage
4. Birthdate
5. Nationality
6. Religion
7. Place of Birth



7. Employee Social Media Account Information
8. Employment Information including Position, Date of Hire, Certification, Regularization, and Sagility Philippines B.V assigned Employee Number, Salary, Site Location/Assignment, Employee Contracts with Sagility Philippines B.V and other company-generated documents on employees
9. Language Proficiency
10. Employee Compensation and Financial Information including Loans, Payroll Reports, Confidential Pay Slips, Bank Accounts, and Bank Advice Reports, Deduction and Earning Registers.
11. Closed-Circuit Television ("CCTV") Surveillance Videos of Sagility Philippines B.V Workstations and Operations Areas
12. Professional Membership Details
13. Signature
14. Background Checks:
  - a) Address Verifications
  - b) Previous Employment History
  - c) Supervisor Performance Feedback
  - d) Character Reference
15. Employee 201 Records including the Following Details: Separation Date, Reason for Separation, Separation Type, Movements/Promotions, Infractions, Disciplinary/Resignation Letter
16. Family Information Including Full Name, Home Address, Relationship, Contact Details, and Occupation
17. Emergency Contact Information including Full Name, Relationship, Contact Number, E-mail, Home Address
8. Passport Details
9. Educational Attainment/Background including Transcripts and Diploma
10. Results of IQ and Grammar Testing
11. Training Records and Reports, including Scorecards, Quiz Books, Development Trackers
12. Interview Results
13. Pre-Employment Medical Records and Health Screening Results, Annual Medical Exam Results, Diagnosis, and Medical Recommendation from Medical Certificates issued by On-site Sagility Philippines B.V Clinic, Medical Complaints Raised by Employees, Drug Screening Results
14. Philippines Registered Nurse License Number
15. United States Registered Nurse License
16. Background Checks
  - a) Highest Educational Attainment
  - b) Prior Civil and Criminal Litigation Records
  - c) Pending Blotters
17. Government Identification and Information, Records, and Reports including National Bureau of Investigation (NBI) Clearance Forms; Social Security System (SSS) numbers, monthly contribution reports, and monthly loan reports; Tax Identification numbers (TIN), Bureau of Internal Revenue gross and tax reports, Community Tax Certificate Nos. and other forms; Philippine Health Insurance Corporation ("PhilHealth") numbers, monthly collection reports, quarterly remittance reports, and employee-member reports; Home Development Mutual Fund ("Pag-IBIG") numbers, monthly premium reports and loans reports, Community Tax Certificates, Police Clearances, and other related government-issued information.
18. Family Information Including Birthdate, Gender, Blood Group, and Other Medical or Hospitalization Documents

## **B. Purpose, Scope, and Method of Personal Data Collection and Processing**



Sagility Philippines B.V collects and processes the above-mentioned personal data primarily for human resource management and development, including the following:

1. Identity verification and entry into the organization's Resource Management System;
2. Pre-qualification and post-qualification assessment, including negative records checks and background validation;
3. Employee discipline management, movement and progression documentation;
4. Development of wellness, incentives and benefits programs that help monitor and enhance employee performance, productivity, and overall health and wellness;
5. Internal communications with employees for work and emergency purposes and absence verification;
6. Company announcements, greetings and similar celebratory salutations in relation to employee's birthday, and similar life events;
7. Processing of employment compensation and corporate benefits, including but not limited to payroll and loan management, flexible benefit management, Health Maintenance Organization ("HMO") coverage and enrollment; and Group Life/Accident Insurance;
8. Review, development, and implementation of employee benefits, perks, programs, and engagement activities;
9. Determination of employees' fitness and on-site medical management in applicable and appropriate cases;
10. Development and implementation of employee learning and training programs, including performance testing and benchmarking, foreign language and oral speaking assessments;
11. Registration/enrollment to external training providers;
12. Issuance of company identification and access cards;
13. Implementation of employee login credentials for the organization's IT and communications network;
14. Maintenance of onsite and remote access security to the organization's network and/or facilities;
15. Compliance with government and regulatory requirements such as Bureau of Internal Revenue ("BIR"), Department of Labor and Employment ("DOLE"), SSS, PhilHealth, Pag-IBIG reportorial requirements, business, occupational permits, licenses, and other National Government and Local Government Unit (LGU) compliance requirements;
16. Incident verification and reporting process involving employees as contractually required by Sagility Philippines B.V clientele;
17. Disclosure to our Corporate Social Responsibility ("CSR") management providers for the purposes of extending to you, opportunities to participate with the organization's CSR initiatives and/or campaigns.
18. For the protection of lawful rights and interests of the organization in internal quasi-judicial and judicial proceedings, or the establishment, exercise or defense of legal claims against prospectively malfeasant employees.
19. Periodic 2<sup>nd</sup> and 3<sup>rd</sup> party audits and risk assessments of Sagility Philippines B.V's processes and practices which may impact its employees.

We collect both electronic and physical copies of the abovementioned personal data from the following sources: a) **directly** from employees and job applicants through i) their curriculum vitae, personal data sheets, submitted medical records and government documents, and interview and training assessment results conducted by authorized personnel and ii) pre-employment health and drug test



screening services conducted by our authorized third-party health service provider; and b) **indirectly** from third parties through the verification efforts of third-party employee background/screening service providers. However, Sagility Philippines B.V may also generate/prepare/produce secondary/derivative documents/records/material containing the above personal data from our processing activities, but in relation to supporting the above-mentioned purposes.

Both electronic and physical copies of the personal data collected and processed are consolidated and stored in data centers located locally or in foreign territories. Electronically processed and stored personal data are encoded into our proprietary information technology systems to facilitate the storage thereof and to ensure our employees and their access to/privileges in other Sagility Philippines B.V systems are adequately recognized and properly delimited. These data centers and systems are covered by appropriate physical, technical and organizational measures in compliance with the requirements of the Data Privacy Act, its IRR, and the existing Memorandum Circulars and Advisories issued by the NPC to ensure that: a) they remain secure while in our custody and accessible only by authorized personnel and under secure processes; and b) that the use of the said information remains proportional and limited to the legitimate purposes specified above.

### C. Recipients of Personal Data

#### i. Internal Personnel

In the collection and processing of personal data, only authorized personnel from the following groups are allowed access thereto: L&D Operations, Operations Training Team , Compliance Officers, Human Resource Compensation and Benefits (“HRCB”), Information Technology (“IT”), Building Administration and Engineering Department (“BAED”), Business Excellence – Audit and Certification (“BE-AUC”), HR Recruitment (“HRR”), HR – Business Partners (“HRBP”), and **all other groups that company may deem necessary to be allowed access to such information in the legitimate exercise of their functions** and only for the purposes enumerated above. These personnel are authorized specific to their function and in accordance with the procedures for application and approval established by the Office of the Data Protection Officer (DPO) of Sagility Philippines B.V. Additional access provided to personnel not mentioned herein may be provided on a case to case basis only upon approval by the Office of the DPO and in consonance with the purposes enumerated above.

#### ii. Third Parties

We do not share or disclose your personal data to third parties unless it is directly related to the purposes outlined above; we are legally required to do so; or in the event that such action is necessary to protect, defend and/or enforce our rights, property or the personal safety of our employees and other individuals.

#### a. Personal Information Processors

Sagility Philippines B.V engages the services of the following Personal Information Processors for the following purposes:

- Pre-employment health and drug test screening service providers to conduct employee medical evaluations;



- Employee background/screening service providers to conduct performance testing/benchmarking, and foreign language and oral speaking assessments; verify the information provided to us by employees; and/or collect additional background checks on a prospective employee for qualification assessment activities.
- Third-party payroll processing agents to ensure timely and proper compensation as well as compliance with existing employment regulations.
- Third-party service providers who process occupational permits and all other business requirements for both national and local government regulation compliance.
- Third-party providers who develop and maintain our platform which allow us to develop wellness, incentives and benefits programs that help monitor and enhance employee performance, productivity and overall health and wellness.

We understand that under such arrangements, Sagility Philippines B.V remains the Personal Information Controller responsible over the information obtained on our behalf by and/or disclosed to such third parties. Nevertheless, we will ensure that any third party to whom such functions are outsourced, as Personal Information Processors, are contractually obligated to comply with the requirements of the Data Privacy Act, its IRR, and the existing Memorandum Circulars and Advisories issued by the NPC. You may request for additional information on the identities of these parties from the Office of the Data Protection Officer.

#### **b. Personal Information Controllers**

Sagility Philippines B.V shares or discloses your personal data to the following Personal Information Controllers for the following purposes:

- Clients to whom Sagility Philippines B.V is contractually obligated to share employee personal data for the following purposes: client systems/tools/applications access provisioning and termination for assigned employees, incident verification and investigation reports involving malfeasant employees.
- Partner companies who provide certain benefit options such as gas cards, ride application discounts and the availment of external benefits management for purposes of verifying your employment with Sagility Philippines B.V and providing you with company benefits.
- Health Maintenance Organizations and Group Life/Accident Insurance Providers who, in turn, further share your data to external auditors/counsels and third-party services providers who are directly involved in the provision of such coverage.
- Government regulatory agencies including, but not limited to the SSS, PhilHealth, Pag-IBIG, DOLE, and the BIR in accordance with reportorial requirements established by law.
- Partner Corporate Social Responsibility (“CSR”) management providers for the purposes of extending to you, opportunities to participate with the organization’s CSR initiatives and/or campaigns.
- Second-Party and Third-Party Auditors for purposes of assessing existing risks and gaps in the organization’s processes which may impact our employees.

These instances, where appropriate, will be covered by appropriate contractual and/or data sharing agreements in accordance with the requirements of the Data Privacy Act, its IRR, and the existing Memorandum Circulars and Advisories issued by the NPC.





### c. Changes in Third-Party Engagements

Because we change providers and partners from time to time in order to maximize the benefits that we can extend to you as well as to seek higher service quality, we seek your clear, unequivocal and express instruction and/or authorization to share your data to the appropriate third-party whenever we change service providers and/or engage new third parties in the provision of additional benefits to you. Rest assured that you will be appropriately informed of any such changes and/or additions.

### III. Personal Data Retention and Disposal

Your personal data will only be retained only for as long as is necessary for the fulfillment of the declared, specified, and legitimate purposes provided above, or when the processing is relevant to the purpose, strictly in accordance with our records retention policy. After which, personal data shall be disposed or discarded in a secure manner that would prevent further processing, unauthorized access, or disclosure to any other party or the public, or prejudice the interests of the data subjects.

### IV. Your Rights as a Data Subject

1. **The Right to be Informed** – This PNCF honors your right to be informed of whether personal data pertaining to you will be, are being, or were processed, including its disclosure to third parties, if any.
2. **The Right to Object** - You have the right to object to the sharing of your information. Should there be any changes in the information provided to you in this PNCF, you should be informed of such changes and your consent thereto obtained before such changes are implemented.
3. **The Right to Withdraw Consent Anytime** - You have the right to withdraw your consent to this PNCF anytime. However, for purposes of security, the legitimate interests of the organization, compliance to existing laws and regulations, and the protection, defense and/or enforcement of our rights, property or the personal safety of our employees and other individuals, Sagility Philippines B.V reserves the right to continue processing your personal data. Sagility Philippines B.V also further reserves the right to review your employment with the organization should your refusal to give consent to relevant information result in Sagility Philippines B.V being unable to effectively render its duties and responsibilities as an employer.
4. **The Right to Access, Rectification, Erasure and/or Blocking** - You have the right to request for a copy of any personal data we hold about you, including the sources from which such information was collected and to whom the same is shared, if any. You have the right to have it corrected or revised if you think it is inaccurate or incomplete, subject to the submission of sufficient proof establishing the same. You have the right to suspend, withdraw or order the blocking, removal or destruction of your personal data should you a) discover that it is incomplete, outdated, false, unlawfully obtained, used for an unauthorized purpose, no longer necessary for the abovementioned purposes; b) withdraw your consent thereto; or c) discover violations of your right as a data subject.



5. **The Right to Damages** - You have the right to be indemnified for any damages sustained due to any violations of your rights as a data subject.

**V. Contact Us**

If you have any questions, concerns, objections about this PNCF, and our personal data processing activities please contact us through the following:

| Data Privacy Officer |                                                                                                                                                                                                     |
|----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| E-mail               | phdpo@sagilityhealth.com                                                                                                                                                                            |
| Office Address       | 11th Floor, Sagility Philippines B.V – Philippine Branch, Zeta Tower,<br>E.Rodriguez Jr. Avenue Corner Ortigas Avenue, Bridgetowne West Ugong<br>Norte 1110, Quezon City, Metro Manila, Philippines |



## VI. Conformity

This PNCF, with your written conformity below, serves as an indication that you have been fully informed of Sagility Philippines B.V.'s employee personal data processing activities, that you completely understand the terms thereof, and that you freely consent thereto and that you acknowledge the attached disciplinary actions for any breach or violation of the policy to secure and protect it. Furthermore, you hereby acknowledge that you take full and sole responsibility over the truthfulness, accuracy, and completeness of the personal data you provide and undertake to immediately notify the company of any change or modification thereto. In instances where such information you share may include the personal data of other data subjects, you warrant that you have lawfully obtained the consent of said data subjects to disclose/share their personal data with Sagility Philippines B.V.

✓ Full Name of the employee: \_\_\_\_\_

✓ Signature: \_\_\_\_\_

✓ Date: \_\_\_\_\_